

23VECV02747 23VECV02747

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-23

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Case Number: 23VECV02747 Hearing Date: July 23, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

FAUSTA LOZADA RAMIREZ,

Plaintiff,

vs.

INLAND WHOLESALE AUTO CENTER, INC.;
GRANDVIEW FINANCIAL SERVICES, INC.; HUDSON INSURANCE COMPANY; ELITE
WARRANTY, INC.; and DOES 1 through 75, inclusive.

Defendants.

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CASE NO.: 23VECV02747

ORDER GRANTING PLAINTIFF'S
MOTION TO ENFORCE SETTLEMENT

I.

BACKGROUND

Plaintiff

Fausta Lozada Ramirez ("Plaintiff") alleges she purchased a defective 2011 Mercedes Benz E-Class on January 30, 2023, from Defendant Inland Wholesale Auto Center, Inc. ("Inland"). Plaintiff alleges Inland assigned the contract between Plaintiff and Inland to Defendant Grandview Financial Services, Inc. ("Grandview").

Plaintiff and

Grandview entered into a settlement agreement. Pursuant to the settlement agreement, Grandview agreed to (1) pay Plaintiff \$15,863.10 within five days of the execution of the settlement agreement, (2) retrieve the vehicle, and (3) pay Plaintiff's attorneys' fees and costs through either a fee motion or payment of \$144,270.00, at Grandview's choice.

Plaintiff now

seeks to enforce the parties' settlement pursuant to Code of Civil Procedure § 664.6.

II.

PROCEDURAL

HISTORY

On June 26,

2023, Plaintiff filed its Complaint, alleging (1) Violations of the Consumers Legal Remedies Act, Civil Code § 1750; (2) Violations of the Automobile Sales Finance Act, Civil Code § 2981; and (3) Civil Theft; (4) Intentional Misrepresentation; (5) Concealment; (6) Negligent Misrepresentation; (7) Violations of the Unfair Competition Law, Business & Professions Code § 17200; (8) Violation of Vehicle Code § 11711.

On December 27,

2024, Grandview filed its Answer.

On May 7, 2026,

Plaintiff filed a Notice of Settlement.

On June 22,

2026, Plaintiff filed the instant Motion to Enforce Settlement ("Motion").

As of July 21,

2026, no opposition has been filed.

III.

LEGAL STANDARD

Code of Civil Procedure § 664.6[1]

provides, as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may

enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.”

“On a motion

to enforce, the court must determine whether the settlement agreement is valid and binding. The court assesses whether the material terms of the settlement were reasonably well-defined and certain, and whether the parties expressly acknowledged that they understood and agreed to be bound by those terms. It may interpret the settlement terms and conditions, but it cannot impose terms to which the parties did not agree.” (Estate of Jones (2022) 82 Cal.App.5th 948, 952 (cleaned up).)

IV.

ANALYSIS

A.

Entry of Judgment

Per the

Settlement Agreement, the parties agreed the Court would retain jurisdiction over the parties to enforce its terms. (See Declaration of Lilia F. Guizar filed June 22, 2026, Ex. A, p. 4). The parties agreed Defendant would “(1) pay Plaintiff \$15,863.19 within five business days of the execution of the settlement agreement, (2) retrieve the vehicle, and (3) pay Plaintiff’s attorneys’ fees and costs through either a fee motion or payment of \$144,270.00, at Grandview’s choice. (See id., Ex. A, p. 1.)

Plaintiff’s

counsel declares “Grandview Financial has not complied with the terms of the settlement agreement” and that they have not “received a response from Grandview Financials’ Counsel.” (Id., ¶ 4.) Plaintiff’s counsel also attaches a copy of the emails sent to Defendant’s counsel requesting the status of the payment to Plaintiff. (See id., ¶ 3, Ex. 2.)

Defendant did

not file an opposition to Plaintiff’s Motion.

The Court

finds the Settlement Agreement valid and enforceable under Code of Civil

Procedure § 664.6.

Accordingly,

Plaintiff's Motion is GRANTED. Judgment will be entered for Plaintiff and against Defendant pursuant to the terms of the Settlement Agreement.

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V.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's Motion to Enforce Settlement pursuant to the terms of the Settlement Agreement.

The Court will sign the Proposed Judgment Plaintiff submitted with this Motion.

IT
IS SO ORDERED.

DATED: July 23, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references
are to California codes unless stated otherwise.